

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201502298	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/28/2015 1:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/28/2016	Precinct: 42		
Date/Time CV Reported Mon, 03/30/2015 10:47 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/30/2015 10:47 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Angel Perez	12452	956159	042 PCT
2. POF Kellyann Blackwood	12641	955758	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Angel Perez	Abuse: PO Angel Perez stopped § 87(2)(b)	A . Alleged Victim Uncooperative
B . POF Kellyann Blackwood	Abuse: PO Kellyann Blackwood stopped § 87(2)(b)	B . Alleged Victim Uncooperative
C . POF Kellyann Blackwood	Abuse: PO Kellyann Blackwood stopped an individual.	C . Victim Unidentified
D . POM Angel Perez	Abuse: PO Angel Perez stopped an individual.	D . Victim Unidentified
E . POM Angel Perez	Abuse: PO Angel Perez stopped § 87(2)(b)	E . Exonerated
F . POM Angel Perez	Abuse: PO Angel Perez questioned § 87(2)(b)	F . Substantiated
G . POF Kellyann Blackwood	Abuse: PO Kellyann Blackwood frisked § 87(2)(b)	G . Substantiated
H . POF Kellyann Blackwood	Abuse: PO Kellyann Blackwood searched § 87(2)(b)	H . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on March 30, 2015. On March 28, 2015, at approximately 2:00 a.m., § 87(2)(b) descended from his friend's apartment to the lobby of a residential FTAB building at § 87(2)(b) in the Bronx. Upon entering the lobby, § 87(2)(b) observed PO Angel Perez and PO Kellyann Blackwood of the 42nd Precinct stationhouse standing near § 87(2)(b) friend, § 87(2)(b) and an unidentified male individual, and both § 87(2)(b) and the unidentified individual stood with their hands braced against a nearby wall (**Allegations A, B, C, and D**). PO Perez instructed § 87(2)(b) to walk to the officers and stand near them, and § 87(2)(b) did so (**Allegation E**). PO Perez then asked if § 87(2)(b) possessed any weapons, and § 87(2)(b) stated that he did not (**Allegation F**). PO Blackwood frisked § 87(2)(b) at this time and felt an object inside of his pants (**Allegation G**). PO Blackwood asked § 87(2)(b) what the object was, and § 87(2)(b) informed her that it was marijuana. PO Blackwood then searched § 87(2)(b) by placing her hands inside of the back of his pants underneath his underwear (**Allegation H**). PO Blackwood could not locate the marijuana, and § 87(2)(b) then removed it himself from inside his underwear near his groin. At this time, PO Perez requested § 87(2)(b) identification, but § 87(2)(b) did not have his identification on his person. PO Perez conducted a warrant check using § 87(2)(b) name and discovered an active arrest warrant for him. PO Perez and PO Blackwood then escorted § 87(2)(b) to the 42nd Precinct stationhouse where he was issued a summons for § 87(2)(b) and was arrested on an active warrant for § 87(2)(b). § 87(2)(b) was processed at Central Booking, stood before a judge, and paid a fine to resolve his active warrant. PO Perez and PO Blackwood allowed § 87(2)(b) and the unidentified third victim to leave the incident location without issuing them a summons or arresting them (Board Review 01, 05, and 06).

Mediation, Civil and Criminal Histories

§ 87(2)(b) accepted mediation, and the case was reassigned to the Mediation Unit on April 27, 2015. The case was returned to the Investigations Division on June 10, 2015, after the subject officers rejected mediation. As of May 19, 2015, § 87(2)(b) has not filed a notice of claim with the City of New York (Board Review 02). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (Board Review 04).
- Both PO Perez and PO Blackwood have been members of the NYPD for one year, and this is the first CCRB complaint filed against them.

Potential Issues

§ 87(2)(b) identified § 87(2)(b) and an unknown individual as victims in this complaint, but statements were not obtained from them.

§ 87(2)(b) provided a phone number for § 87(2)(b) but did not provide an address for him. Five calls were placed to this phone number prior to sending the case to mediation, but there was no response and no opportunity to leave a voicemail in each case. Searches of WhitePages, Lexis Nexis, and BADS failed to produce additional contact information for § 87(2)(b). Three additional calls were placed to § 87(2)(b) when the case was returned to the investigations division. During the first contact attempt, § 87(2)(b) was contacted via phone and was

scheduled for an interview. § 87(2)(b) also provided his mailing address during this call. § 87(2)(b) failed to appear for his scheduled appointment, and he failed to respond to subsequent contact attempts, including a missed appointment letter and a please call letter.

§ 87(2)(b) did not know the name of the third alleged victim, and he did not possess contact information for him. Without any identifying information, database searches for his contact information could not be conducted. A stop and frisk report was not prepared for the incident, and this individual was not arrested or summonsed. As such, police documentation could not assist the investigation in identifying him or obtaining his contact information.

Findings and Recommendations

Allegation A – Abuse of Authority: PO Kellyann Blackwood stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Angel Perez stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Kellyann Blackwood stopped § 87(2)(b)

Allegation D – Abuse of Authority: PO Angel Perez stopped § 87(2)(b)

It is undisputed that PO Blackwood and PO Perez stopped § 87(2)(b) and § 87(2)(b) inside the lobby of § 87(2)(b) (Board Review 01, 05, and 06).

§ 87(2)(b) stated that he was visiting a friend, identified only as § 87(2)(b), at his apartment at an FTAB building at § 87(2)(b) (Board Review 01). After approximately one hour inside the apartment, § 87(2)(b) descended the stairs to the lobby of the building at which time he observed § 87(2)(b) and an unidentified individual standing in the lobby near PO Perez and PO Blackwood with their hands placed against a nearby wall.

PO Perez stated that he observed a group of approximately ten civilians standing in the lobby of § 87(2)(b) from their police vehicle on the street (Board Review 05 and 06). PO Blackwood was unsure of the exact number of individuals in this group but stated that it was composed of more than three people. They approached this group to instruct them to disperse because building rules prohibited loitering in the lobby. Upon their approach, all of the civilians ran out of the lobby up the stairs. The officers observed liquor bottles, cups, and spilt alcohol on the lobby floor, and PO Perez observed these individuals throw cups onto the ground prior to their flight. The officers also smelled the odor of marijuana and alcohol when entering the lobby, leading them to suspect that the group they observed used marijuana and consumed alcohol prior to the officers' approach. The officers walked up the stairs to locate these individuals due to this suspicion, but they did not find them. They then returned to the lobby where they waited for approximately one minute. At this time, § 87(2)(b) and an unidentified individual walked down the stairs together into the lobby, and PO Perez and PO Blackwood approached them and instructed them to remain in the lobby.

PO Perez stated that the officers stopped § 87(2)(b) and the other individual because he suspected them of using marijuana and consuming alcohol (Board Review 05 and 06). PO Perez based this suspicion on the fact that the odor of marijuana grew stronger when § 87(2)(b) and the other individual approached, and he recognized them as being part of the original group observed initially in the lobby, which he believed was responsible to the empty liquor bottles and spilt alcohol. PO Blackwood did not recall connecting § 87(2)(b) and the other individual to the original group in the lobby, and she did not recall the officers' reasons for stopping them.

§ 87(2)(g)

Therefore, it is

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

Allegation F – Abuse of Authority: PO Angel Perez questioned § 87(2)(b)

Allegation G – Abuse of Authority: PO Kellyann Blackwood frisked § 87(2)(b)

Allegation H – Abuse of Authority: PO Kellyann Blackwood searched § 87(2)(b)

It is undisputed that one of the officers asked § 87(2)(b) if he possessed any weapons, but it is in dispute as to whether PO Perez or PO Blackwood asked this question. It is undisputed that PO Blackwood frisked and searched § 87(2)(b) after he answered this question. It is undisputed that § 87(2)(b) admitted to possessing marijuana at some point during the incident, and it is undisputed that PO Perez discovered an active warrant for § 87(2)(b) arrest at some point during the incident. § 87(2)(g)

According to § 87(2)(b) PO Perez asked him if he possessed any weapons after instructing him to remain in the lobby (Board Review 01). § 87(2)(b) replied the he did not possess any weapons but that he possessed a small amount of marijuana. PO Blackwood frisked § 87(2)(b) at this time and told § 87(2)(b) that she felt an object in § 87(2)(b) pants. PO Blackwood then placed her hands inside of § 87(2)(b) underwear to retrieve the object. When PO Blackwood could not locate the object, § 87(2)(b) retrieved it himself from inside of his underwear, revealing it to be a plastic bag of marijuana. PO Perez requested § 87(2)(b) identification at this time, and § 87(2)(b) provided his name in-lieu of his identification because he did not have it on his person. PO Perez and PO Blackwood then arrested § 87(2)(b) and escorted him to the 42nd Precinct stationhouse after discovering that he possessed an active arrest warrant.

PO Perez stated that he asked for § 87(2)(b) identification at the beginning of the interaction and prior to the frisk (Board Review 05). PO Perez stated that he discovered an active warrant for § 87(2)(b) arrest after obtaining his name. Upon discovering this warrant, PO Perez stated that PO Blackwood asked whether § 87(2)(b) possessed any weapons, and § 87(2)(b) stated that he did not possess any weapons. PO Blackwood then frisked and searched § 87(2)(b) incident to his arrest on this active warrant, and PO Perez stated that PO Blackwood's question, frisk, and search of § 87(2)(b) was solely justified by the officers' intention to arrest him pursuant to his arrest warrant. On the other hand, PO Blackwood stated that PO Perez discovered an active warrant for § 87(2)(b) arrest after she frisked and searched him (Board Review 06). PO Blackwood did not recall asking § 87(2)(b) whether he possessed any weapons, and she did not recall whether PO Perez asked this question (Board Review 06). PO Perez did not recall § 87(2)(b) admitting to possessing marijuana prior to his frisk, and PO Blackwood stated that § 87(2)(b) admitted to possessing marijuana after he was frisked (Board Review 05).

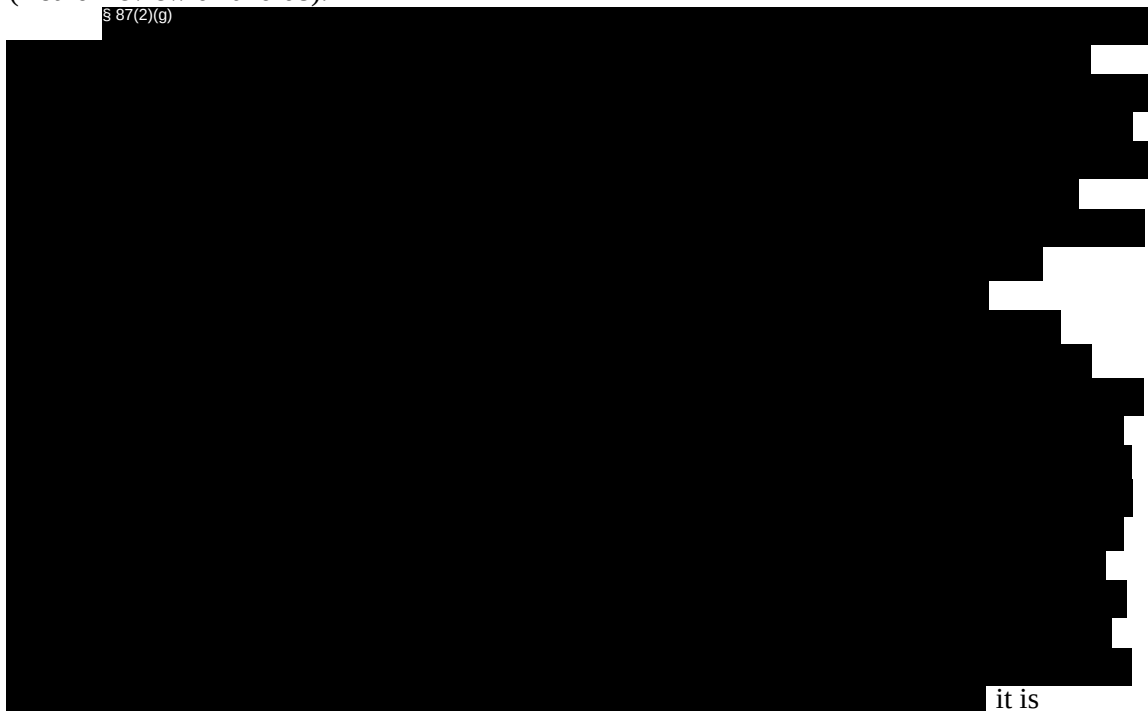
PO Blackwood stated that she immediately frisked § 87(2)(b) when he entered the building lobby because she suspected that he possessed a weapon (Board Review 05-06). PO Blackwood based this suspicion on the fact that the 42nd Precinct receives many 911 calls about weapons and drugs inside of § 87(2)(b), and PO Perez corroborated this information. The officers stated that they did not receive any complaint about weapons or drugs during the incident. In addition, PO Blackwood initially stated that she suspected § 87(2)(b) of possessing a

weapon because the original group of civilians in the lobby ran away from the officers. PO Blackwood took this flight to indicate that these civilians were hiding something from the officers, but she did not have a specific reason to believe that this hidden object was a weapon. PO Blackwood later stated that she did not recall recognizing § 87(2)(b) as a member of the group that fled from the officers. PO Blackwood also did not recall seeing any suspicious bulges on § 87(2)(b) person. PO Blackwood stated that she had no other reason for frisking § 87(2)(b) aside from her suspicion that he possessed a weapon.

PO Blackwood felt something in § 87(2)(b) pants during her frisk, but she could only describe this object as a “hard object.” PO Blackwood asked § 87(2)(b) what the object was, and § 87(2)(b) informed her that it was marijuana. PO Blackwood did not recall whether she searched § 87(2)(b) at this time to retrieve the marijuana or whether she searched § 87(2)(b) at any point during the incident. She stated that she obtained the marijuana after § 87(2)(b) provided it to her himself.

According to *People v. DeBour* and *People v. Hollman*, an officer must have founded suspicion of criminality to ask accusatory questions. According to *People v. DeBour*, an officer must reasonable suspicion that he/she is in danger by virtue of the individual being armed in order to frisk that individual, and an officer must have probable cause to search an individual (Board Review 07 and 08).

§ 87(2)(g)



it is recommended that **Allegations F, G and H** be closed as **Substantiated**.

§ 87(4-b) § 87(2)(g)

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date